

1 ENGROSSED HOUSE
2 BILL NO. 3755

By: Sterling of the House

3 and

4 Stanley of the Senate

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6
7 [children - the Oklahoma Juvenile Code - temporary
8 custody - Office of Juvenile Affairs - exception -
9 medication prescribed for juveniles - temporary
10 exception - effective date]
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15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 10A O.S. 2021, Section 2-2-101, is
17 amended to read as follows:

18 Section 2-2-101. A. A child may be taken into custody prior to
19 the filing of a petition alleging that the child is delinquent or in
20 need of supervision:

21 1. By a peace officer, without a court order for any criminal
22 offense for which the officer is authorized to arrest an adult
23 without a warrant, or if the child is willfully and voluntarily
24 absent from the home of the child without the consent of the parent,

1 legal guardian, legal custodian or other person having custody and
2 control of the child for a substantial length of time or without
3 intent to return, or if the surroundings of the child are such as to
4 endanger the welfare of the child;

5 2. By a peace officer or an employee of the court without a
6 court order, if the child is willfully and voluntarily absent from
7 the home of the child without the consent of the parent, legal
8 guardian, legal custodian or other person having custody and control
9 of the child if the surroundings of the child are such as to
10 endanger the welfare of the child or, in the reasonable belief of
11 the employee of the court or peace officer, the child appears to
12 have run away from home without just cause. For purposes of this
13 section, a peace officer may reasonably believe that a child has run
14 away from home when the child refuses to give his or her name or the
15 name and address of a parent or other person legally responsible for
16 the care of the child or when the peace officer has reason to doubt
17 that the name and address given by the child are the actual name and
18 address of the parent or other person legally responsible for the
19 care of the child. A peace officer or court employee is authorized
20 by the court to take a child who has run away from home or who, in
21 the reasonable belief of the peace officer, appears to have run away
22 from home, to a facility designated by administrative order of the
23 court for such purposes if the peace officer or court employee is
24 unable to or has determined that it is unsafe to return the child to

1 the home of the child or to the custody of his or her parent or
2 other person legally responsible for the care of the child. Any
3 such facility receiving a child shall inform a parent or other
4 person responsible for the care of the child;

5 3. Pursuant to an order of the district court issued on the
6 application of the office of the district attorney. The application
7 presented by the district attorney shall be supported by a sworn
8 affidavit which may be based upon information and belief. The
9 application shall state facts sufficient to demonstrate to the court
10 that there is probable cause to believe the child has committed a
11 crime or is in violation of the terms of probation, parole or order
12 of the court;

13 4. By order of the district court pursuant to subsection F of
14 this section when the child is in need of medical or behavioral
15 health treatment or other action in order to protect the health or
16 welfare of the child and the parent, legal guardian, legal custodian
17 or other person having custody or control of the child is unwilling
18 or unavailable to consent to such medical or behavioral health
19 treatment or other action; and

20 5. Pursuant to an emergency ex parte or a final protective
21 order of the district court issued at the request of a parent or
22 legal guardian pursuant to the Protection from Domestic Abuse Act.

23 Any child referred to in this subsection shall ~~not~~ be considered
24 to be in the temporary custody of the Office of Juvenile Affairs,

1 and such temporary custody shall continue for the entire duration
2 that the child is held in the temporary care of a police officer or
3 other person employed by a police department or in a secure
4 detention on charges as an accused juvenile delinquent. The child
5 shall not be considered to be in the temporary custody of the Office
6 of Juvenile Affairs if the child is released to the custody of the
7 parent of the child, legal guardian, legal custodian, attorney, or
8 other responsible adult.

9 B. Whenever a child is taken into custody as a delinquent
10 child, the child shall be detained, held temporarily in the
11 custodial care of a peace officer or other person employed by a
12 police department, or be released to the custody of the parent of
13 the child, legal guardian, legal custodian, attorney or other
14 responsible adult, upon the written promise of such person to bring
15 the child to the court at the time fixed if a petition is to be
16 filed and to assume responsibility for costs for damages caused by
17 the child if the child commits any delinquent acts after being
18 released regardless of whether or not a petition is to be filed. It
19 shall be a misdemeanor for any person to sign the written promise
20 and then fail to comply with the terms of the promise. Any person
21 convicted of violating the terms of the written promise shall be
22 subject to imprisonment in the county jail for not more than six (6)
23 months or a fine of not more than Five Hundred Dollars (\$500.00), or
24 by both such fine and imprisonment. In addition, if a parent, legal

1 guardian, legal custodian, attorney or other responsible adult is
2 notified that the child has been taken into custody, it shall be a
3 misdemeanor for such person to refuse to assume custody of the child
4 within a timely manner. If detained, the child shall be taken
5 immediately before a judge of the district court in the county in
6 which the child is sought to be detained, or to the place of
7 detention or a children's emergency resource center or host home
8 designated by the court. If no judge be available locally, the
9 person having the child in custody shall immediately report the
10 detention of the child to the presiding judge of the judicial
11 administrative district, provided that the child shall not be
12 detained in custody beyond the next judicial day or for good cause
13 shown due to problems of arranging for and transporting the child to
14 and from a secure juvenile detention center, beyond the second
15 judicial day unless the court shall so order after a detention
16 hearing to determine if there exists probable cause to detain the
17 child. The child shall be present at the detention hearing or the
18 image of the child may be broadcast to the judge by closed-circuit
19 television or any other electronic means that provides for a two-way
20 communication of image and sound between the child and the judge.
21 If the latter judge cannot be reached, such detention shall be
22 reported immediately to any judge regularly serving within the
23 judicial administrative district. If detained, a reasonable bond
24 for release shall be set. Pending further disposition of the case,

1 a child whose custody has been assumed by the court may be released
2 to the custody of a parent, legal guardian, legal custodian, or
3 other responsible adult or to any other person appointed by the
4 court, or be detained pursuant to Chapter 3 of the Oklahoma Juvenile
5 Code in such place as shall be designated by the court, subject to
6 further order.

7 C. When a child is taken into custody as a child in need of
8 supervision, the child shall be detained and held temporarily in the
9 custodial care of a peace officer or placed within a community
10 intervention center as defined in subsection D of Section 2-7-305 of
11 this title, a children's emergency resource center or host home, or
12 be released to the custody of the parent of the child, legal
13 guardian, legal custodian, attorney or other responsible adult, upon
14 the written promise of such person to bring the child to court at
15 the time fixed if a petition is to be filed. A child who is alleged
16 or adjudicated to be in need of supervision shall not be detained in
17 any jail, lockup, or other place used for adults convicted of a
18 crime or under arrest and charged with a crime.

19 D. When any child is taken into custody pursuant to this title
20 and it reasonably appears to the peace officer, employee of the
21 court or person acting pursuant to court order that the child is in
22 need of medical treatment to preserve the health of the child, any
23 peace officer, any employee of the court or person acting pursuant
24 to court order shall have the authority to authorize medical

1 examination and medical treatment for any child found to be in need
2 of medical treatment as diagnosed by a competent medical authority
3 in the absence of the parent of the child, legal guardian, legal
4 custodian, or other person having custody and control of the child
5 who is competent to authorize medical treatment. The officer or the
6 employee of the court or person acting pursuant to court order shall
7 authorize said medical treatment only after exercising due diligence
8 to locate the parent of the child, legal guardian, legal custodian,
9 or other person legally competent to authorize said medical
10 treatment. The parent of the child, legal guardian, legal
11 custodian, or other person having custody and control shall be
12 responsible for such medical expenses as ordered by the court. No
13 peace officer, any employee of the court or person acting pursuant
14 to court order authorizing such treatment in accordance with the
15 provisions of this section for any child found in need of such
16 medical treatment shall have any liability, civil or criminal, for
17 giving such authorization.

18 E. A child who has been taken into custody as otherwise
19 provided by this Code who appears to be a minor in need of
20 treatment, as defined by the Inpatient Mental Health and Substance
21 Abuse Treatment of Minors Act, may be admitted to a behavioral
22 health treatment facility in accordance with the provisions of the
23 Inpatient Mental Health and Substance Abuse Treatment of Minors Act.
24 The parent of the child, legal guardian, legal custodian, or other

1 person having custody and control shall be responsible for such
2 behavioral health expenses as ordered by the court. No peace
3 officer, any employee of the court or person acting pursuant to
4 court order authorizing such treatment in accordance with the
5 provisions of this section for any child found in need of such
6 behavioral health evaluation or treatment shall have any liability,
7 civil or criminal, for giving such authorization.

8 F. 1. A child may be taken into custody pursuant to an order
9 of the court specifying that the child is in need of medical
10 treatment or other action to protect the health or welfare of the
11 child and the parent, legal guardian, legal custodian, or other
12 responsible adult having custody or control of a child is unwilling
13 or unavailable to consent to such medical treatment or other action.

14 2. If the child is in need of immediate medical treatment or
15 other action to protect the health or welfare of the child, the
16 court may issue an emergency ex parte order upon application of the
17 district attorney of the county in which the child is located. The
18 application for an ex parte order may be verbal or in writing and
19 shall be supported by facts sufficient to demonstrate to the court
20 that there is reasonable cause to believe that the child is in need
21 of immediate medical treatment or other action to protect the health
22 or welfare of the child. The emergency ex parte order shall be in
23 effect until a full hearing is conducted. A copy of the
24 application, notice for full hearing and a copy of any ex parte

1 order issued by the court shall be served upon such parent, legal
2 guardian, legal custodian, or other responsible adult having custody
3 or control of the child. Within twenty-four (24) hours of the
4 filing of the application the court shall schedule a full hearing on
5 the application, regardless of whether an emergency ex parte order
6 had been issued or denied.

7 3. Except as otherwise provided by paragraph 2 of this
8 subsection, whenever a child is in need of medical treatment to
9 protect the health or welfare of the child, or whenever any other
10 action is necessary to protect the health or welfare of the child,
11 and the parent of the child, legal guardian, legal custodian, or
12 other person having custody or control of the child is unwilling or
13 unavailable to consent to such medical treatment or other action,
14 the court, upon application of the district attorney of the county
15 in which the child is located, shall hold a full hearing within five
16 (5) days of filing the application. Notice of the hearing and a
17 copy of the application shall be served upon the parent, legal
18 guardian, legal custodian, or other person having custody or control
19 of the child.

20 4. At any hearing held pursuant to this subsection, the court
21 may grant any order or require such medical treatment or other
22 action as is necessary to protect the health or welfare of the
23 child.

1 5. a. The parent, legal guardian, legal custodian, or other
2 person having custody or control of the child shall be
3 responsible for such medical expenses as ordered by
4 the court.

5 b. No peace officer, any employee of the court or person
6 acting pursuant to court order authorizing such
7 treatment in accordance with the provisions of this
8 subsection for any child found in need of such medical
9 treatment shall have any liability, civil or criminal.

10 G. As a part of the intake process, an employee of the Office
11 of Juvenile Affairs or a county juvenile bureau shall inquire as to
12 whether there is any American Indian lineage or ancestry that would
13 make the child eligible for membership or citizenship in a federally
14 recognized American Indian tribe or nation. If the employee of the
15 Office of Juvenile Affairs or a county juvenile bureau determines
16 that the child may have American Indian lineage or ancestry, the
17 employee shall notify the primary tribe or nation of membership or
18 citizenship within three (3) judicial days of completing an intake
19 of such determination. Any information or records related to taking
20 the child into custody shall be confidential, shall not be open to
21 the general public, and shall not be inspected or their contents
22 disclosed.

1 SECTION 2. AMENDATORY 10A O.S. 2021, Section 2-3-103, as
2 amended by Section 1, Chapter 242, O.S.L. 2022 (10A O.S. Supp. 2025,
3 Section 2-3-103), is amended to read as follows:

4 Section 2-3-103. A. Provision shall be made for the temporary
5 detention of children in a juvenile detention facility or the court
6 may arrange for the care and custody of such children temporarily in
7 private homes, subject to the supervision of the court, or the court
8 may provide shelter or may enter into a contract with any
9 institution or agency to receive, for temporary care and custody,
10 children within the jurisdiction of the court. The Office of
11 Juvenile Affairs shall not be ordered to provide detention unless
12 said Office has designated and is operating detention services or
13 facilities.

14 B. County sheriffs of the arresting agency, their designee, any
15 peace officer, private contractors under contract with the Office of
16 Juvenile Affairs for transportation services, or juvenile court
17 officers shall provide for the transportation of juveniles to and
18 from secure detention for purposes of admission, interfacility
19 transfer, discharge, medical or dental attention, court appearance,
20 or placement designated by the Office. No private contract for
21 transportation services shall be entered into by the Office unless
22 the private contractor demonstrates to the satisfaction of the
23 Office that such contractor is able to obtain insurance or provide
24 self-insurance to indemnify the Office against possible lawsuits and

1 meets the requirements of subparagraphs a, b and d of paragraph 4 of
2 subsection C of this section. The Office of Juvenile Affairs shall
3 not be ordered to provide transportation for a juvenile who is
4 detained in or is destined for secure detention. The Office of
5 Juvenile Affairs shall provide reimbursement to the entity
6 transporting juveniles for necessary and actual expenses for
7 transporting juveniles who are detained in or destined for a secure
8 detention center as follows:

9 1. A fee for the cost of personal services at the rate of
10 Seventeen Dollars (\$17.00) per hour;

11 2. Mileage reimbursement for each mile actually traveled at the
12 rate established in the State Travel Reimbursement Act;

13 3. Meals for transporting personnel, not to exceed Ten Dollars
14 (\$10.00) per meal; and

15 4. Meals for juveniles being transported, not to exceed Ten
16 Dollars (\$10.00) per meal.

17 The Office of Juvenile Affairs shall process and mail
18 reimbursement claims within sixty (60) days of receipt. Payments
19 for services provided by a county sheriff's office shall be paid to
20 the county and deposited in the service fee account of the sheriff.

21 C. 1. All juvenile detention facilities shall be certified by
22 the Office of Juvenile Affairs. To be certified, a juvenile
23 detention facility shall be required to meet standards for
24 certification promulgated by the Board of Juvenile Affairs.

1 2. The board of county commissioners of every county shall
2 provide for the temporary detention of a child who is or who may be
3 subject to secure detention and may construct a building or rent
4 space for such purpose. The boards of county commissioners shall
5 provide for temporary detention services and facilities in
6 accordance with the provisions of the State Plan for the
7 Establishment of Juvenile Detention Services adopted pursuant to
8 subsection D of this section and in accordance with subsections A
9 and C of Section 2-7-608 of this title. The boards of county
10 commissioners are hereby authorized to create multicounty trust
11 authorities for the purpose of operating juvenile detention
12 facilities.

13 3. In order to operate the juvenile detention facilities
14 designated in the State Plan for the Establishment of Juvenile
15 Detention Services and in subsections A and C of Section 2-7-608 of
16 this title, the boards of county commissioners in the designated
17 host counties shall:

- 18 a. operate the juvenile detention facility through a
19 statutorily constituted juvenile bureau subject to the
20 supervision of the district court, or
- 21 b. operate the juvenile detention facility by employing a
22 manager who may employ personnel and incur other
23 expenses as may be necessary for its operation and
24 maintenance, or

1 c. contract with a public agency, private agency,
2 federally recognized tribe, or single or multi-county
3 trust authority for the operation of the juvenile
4 detention facility. In the event any board of county
5 commissioners contracts with a public or private
6 agency or a federally recognized tribe, pursuant to
7 the provisions of this section, the Office is
8 authorized to directly contract with and pay such
9 public or private agency or federally recognized tribe
10 for provision of detention services. Any contract
11 with a federally recognized tribe shall become
12 effective upon approval by the board of county
13 commissioners.

14 4. Management contracts for privately operated detention
15 facilities shall be negotiated with the firm found most qualified by
16 the board of county commissioners. However, no private management
17 contract shall be entered into by the board unless the private
18 contractor demonstrates to the satisfaction of the board:

19 a. that the contractor has the qualifications,
20 experience, and personnel necessary to implement the
21 terms of the contract,

22 b. that the financial condition of the contractor is such
23 that the term of the contract can be fulfilled,

1 c. that the ability of the contractor to obtain insurance
2 or provide self-insurance to indemnify the county
3 against possible lawsuits and to compensate the county
4 for any property damage or expenses incurred due to
5 the private operation of the juvenile detention
6 facility, and

7 d. that the contractor has the ability to comply with
8 applicable court orders and rules of the Office of
9 Juvenile Affairs.

10 5. All counties to be served by a secure juvenile detention
11 facility may, upon the opening of such facility, contract with the
12 operators for the use of the facility for the temporary detention of
13 children who are subject to secure detention; provided, however, a
14 jail, adult lockup, or other adult detention facility may be used
15 for the secure detention of a child as provided for in Section 2-3-
16 101 of this title.

17 6. Expenses incurred in carrying out the provisions of this
18 section shall be paid from the general fund of the county or from
19 other public funds lawfully appropriated for such purposes or from
20 private funds that are available for such purposes. A county may
21 also issue bonds for the construction of detention facilities.

22 7. The operation of a juvenile detention facility by a county
23 shall constitute a quasi-judicial function and is also hereby
24 declared to be a function of the State of Oklahoma for purposes of

1 the Eleventh Amendment to the United States Constitution. In
2 addition, no contract authorized by the provisions of this section
3 for the providing of transportation services or for the operation of
4 a juvenile detention facility shall be awarded until the contractor
5 demonstrates to the satisfaction of the county that the contractor
6 has obtained liability insurance with the limits specified by The
7 Governmental Tort Claims Act against lawsuits arising from the
8 operation of the juvenile detention facility by the contractor, or,
9 if the contract is for the providing of transportation services, the
10 contractor has obtained liability insurance with the limits
11 specified by The Governmental Tort Claims Act against lawsuits
12 arising from the transportation of juveniles as authorized by
13 subsection A B of this section.

14 D. The Board of Juvenile Affairs, from monies appropriated for
15 that purpose, shall develop, adopt, and implement a plan for secure
16 juvenile detention services and alternatives to secure detention, to
17 be known as the State Plan for the Establishment of Juvenile
18 Detention Services, which shall provide for the establishment of
19 juvenile detention facilities and services with due regard for
20 appropriate geographical distribution and existing juvenile
21 detention programs operated by statutorily constituted juvenile
22 bureaus. Said plan may be amended or modified by the Board as
23 necessary and appropriate. Until said plan is adopted by the Board,
24

1 the plan adopted by the Commission for Human Services shall remain
2 in effect.

3 1. The Board of Juvenile Affairs shall establish procedures for
4 the letting of contracts or grants, including grants to existing
5 juvenile detention programs operated by statutorily constituted
6 juvenile bureaus, and the conditions and requirements for the
7 receipt of said grants or contracts for juvenile detention services
8 and facilities as provided in this section and Section 2-7-401 of
9 this title. A copy of such procedures shall be made available to
10 any member of the general public upon request. All such grants or
11 contracts shall require the participation of local resources in the
12 funding of juvenile detention facilities. A contract for services
13 shall be based upon a formula approved by the Board which shall set
14 the contract amount in accordance with the services offered and the
15 degree of compliance with standards for certification.

16 2. The Board of Juvenile Affairs shall establish standards for
17 the certification of detention services and juvenile detention
18 facilities. Such standards may include, but not be limited to:

19 a. screening for detention~~+~~l

20 b. education and recreation opportunities for juveniles
21 in secure detention~~+~~l and

22 c. accreditation by the American Correctional
23 Association.

1 As a condition of continuing eligibility for grants or contracts,
2 secure juvenile detention services and facilities shall be certified
3 by the Board within two (2) years of the date of the initial grant
4 or contract.

5 3. When a juvenile is under the Office of Juvenile Affairs'
6 supervision or custody, including temporary custody, the Office of
7 Juvenile Affairs shall provide to the operator of such detention
8 facility any and all medication that was prescribed for such
9 juvenile at the time of placement.

10 4. In the event that such prescription medication required
11 pursuant to paragraph 3 of this subsection is not available at the
12 time of placement, the Office of Juvenile Affairs shall provide, at
13 no charge to the detention center or operator, such medication to
14 the operator no later than forty-eight (48) hours following the
15 placement or, contingent on the availability of funds, shall provide
16 any funds appropriated by the Legislature for the purpose of
17 carrying into effect this subsection directly to the detention
18 center or operator who shall assume the responsibilities required
19 pursuant to this paragraph.

20 E. The State Department of Health, with the assistance of the
21 Office of Juvenile Affairs, shall establish standards for the
22 certification of jails, adult lockups, and adult detention
23 facilities used to detain juveniles. Such standards shall include
24 but not be limited to: ~~separation~~

1 1. Separation of juveniles from adults; ~~supervision~~

2 2. Supervision of juveniles; and ~~health~~

3 3. Health and safety measures for juveniles.

4 The Department of Health is authorized to inspect any jail, adult
5 lockup, or adult detention facility for the purpose of determining
6 compliance with such standards. No jail, adult lockup, or other
7 adult detention facility shall be used to detain juveniles unless
8 such jail, adult lockup, or other adult detention facility complies
9 with the standards established by the Department of Health and is
10 designated as a place for the detention of juveniles by the judge
11 having juvenile docket responsibility in the county from a list of
12 eligible facilities supplied by the Department of Health.

13 The development and approval of the standards provided for in
14 this ~~paragraph~~ subsection shall comply with the provisions of the
15 Administrative Procedures Act.

16 F. The State Board of Health shall promulgate rules providing
17 for the routine recording and reporting of the use of any adult
18 jail, lockup or other adult facility for the detention of any person
19 under the age of eighteen (18).

20 1. For the purpose of ensuring the uniformity and compatibility
21 of information related to the detention of persons under age
22 eighteen (18), said rules shall be reviewed and approved by the
23 Oklahoma Commission on Children and Youth prior to their adoption by
24 the Board; ~~and.~~

2. Records of detention shall be reviewed during each routine inspection of adult jails, lockups or other adult detention facilities inspected by the State Department of Health and a statistical report of said detentions shall be submitted to the Office of Juvenile Affairs at least every six (6) months in a form approved by the Board of Juvenile Affairs.

SECTION 3. This act shall become effective November 1, 2026.

Passed the House of Representatives the 11th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate